

Intellectual Property Law in the Digital Age

Dr.Suwijak Chandaphan





What is Intellectual Property?



Intellectual Property

- ❖ A type of property
- ❖ The word “property” also includes no-shape object, which can be owned and have value in itself.

What is the Intellectual Property Right?

- **“Intellectual property (IP)”** refers to creations of the mind, such as inventions; literary and artistic works; designs; and symbols, names and images used in commerce.” (World Intellectual Property Organization: WIPO)
- **Intellectual property rights** are the rights given to persons over the creations of their minds. They usually give the creator an exclusive right over the use of his/her creation for a certain period of time.
 - ❖ Copyright and rights related to copyright.
 - ❖ Industrial property. (ex. Patent, Trademark etc.)



Main forms of Intellectual property



Copyright



Trademark



Patent?

Copyright



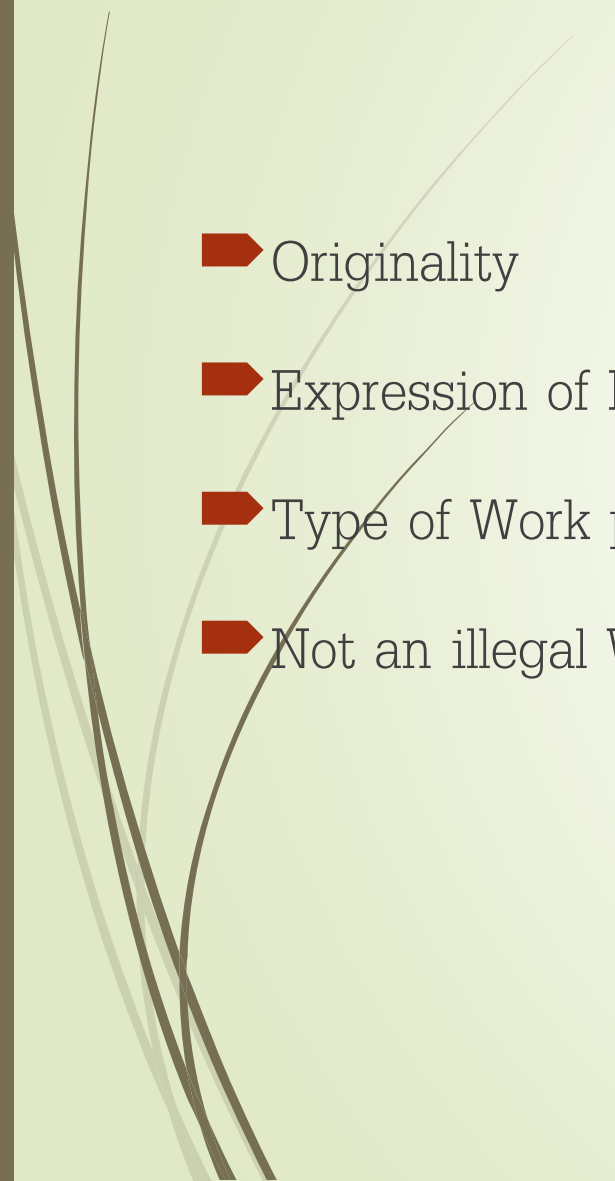


Fundamental Principles of Copyright

- Copyright protects expressions of ideas
 - Not idea
- It is an exclusive right.
- Copyright protection arises automatically at the time of the creation of eligible work.
 - Registration is not necessary
- It has duration of protection.

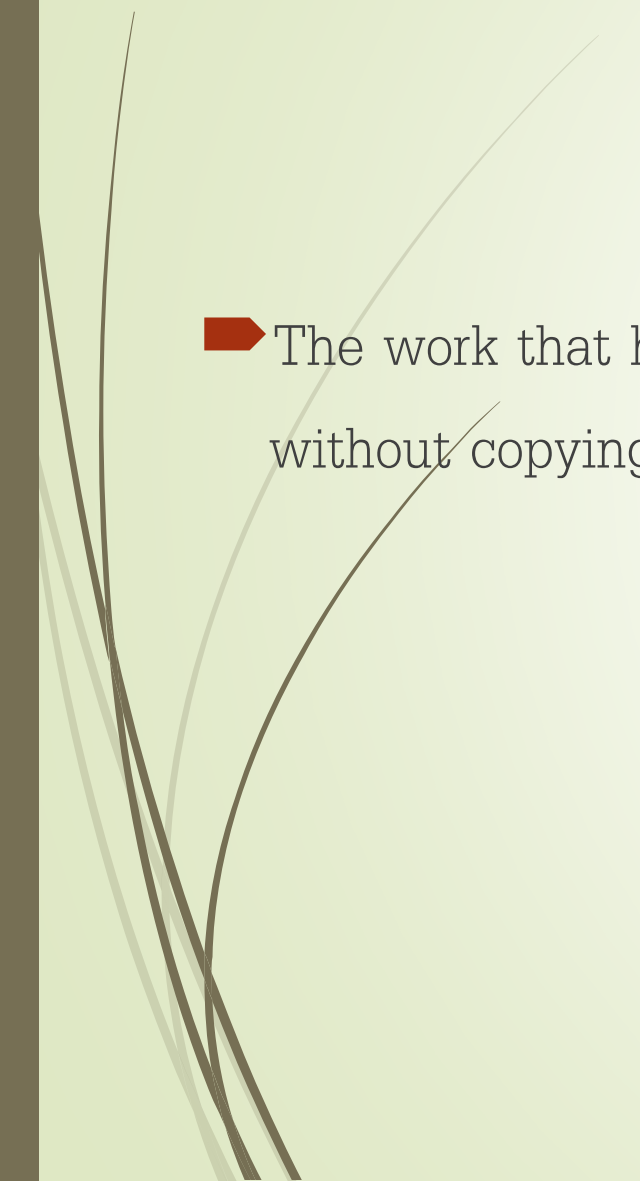


Composition of Copyrighted Work

- Originality
 - Expression of Ideas
 - Type of Work provided by law
 - Not an illegal Work
- 



What is “Originality”?

- The work that he had created by using his/her **skill, effort, and judgment** without copying other people’s work.
- 

What is an “Expression of Ideas”?

- Copyright protects expressions of ideas.
- But not idea, procedure, process, system, method of use or operation, concept, principle, discovery, scientific theory, or mathematical theory.



Type of work

- ➡ It must be a type of work as provided by the law.
- 



Type of Work

1. Literary Works
2. Dramatic Works
3. Artistic Works
4. Musical Works
5. Audio-Visual Works
6. Cinematographic Works
7. Sound Recording Works
8. Sound and Video Broadcasting Works
9. Any Other Works in the Literary, Scientific or Artistic Domain



Illegal Work

- It must not be an illegal work.
- According to the Thai Supreme Court's Judgment: **pornography is considered as an illegal work** and therefore not protected as a copyrighted work.



Copyright Law in the Digital Era

- Copyright = A branch of intellectual property law
- Digital age: Easy copying & sharing → higher risk of infringement
- Copyright law has been updated to strengthen protection for digital works



Digital Rights Management (DRM)

- **Technology to control access and use of digital content**
- **Methods:** Encryption, License verification, Usage restrictions
 - **Pros:** Prevents infringement, protects creators' revenue
 - **Cons:** Limits consumers' rights, may conflict with fair use
- **Key takeaway: Need balance between creators' rights ↔ consumers' rights**
 - Creators' Rights: Protect works, earn income, prevent piracy
 - Consumers' Rights: Use legally purchased content fairly (backup, research, multiple devices)
 - Problem: Too much protection → users feel restricted; too little protection → piracy increases
 - Key Idea: Find a middle ground where both sides are fairly protected

A person in a dark suit and blue tie is shown from the chest up, interacting with a large, transparent digital screen. The screen displays various futuristic elements: binary code (0s and 1s), a globe icon, a list of services including 'INTERNET', 'LIVE CHAT', 'IMEDIA', and 'PHOTOS', and a hand cursor pointing at a bar chart. The background is a blurred office setting. An orange arrow points from the left towards the word 'Trademark'.

Trademark

What is a Trademark?

- **A mark which is;**

- used on

- or proposed to be used on

- or in connection with goods

- To **distinguish** those trademarked goods from other trademarked goods.

Characteristics of trademark

➤ It must be *a mark*.

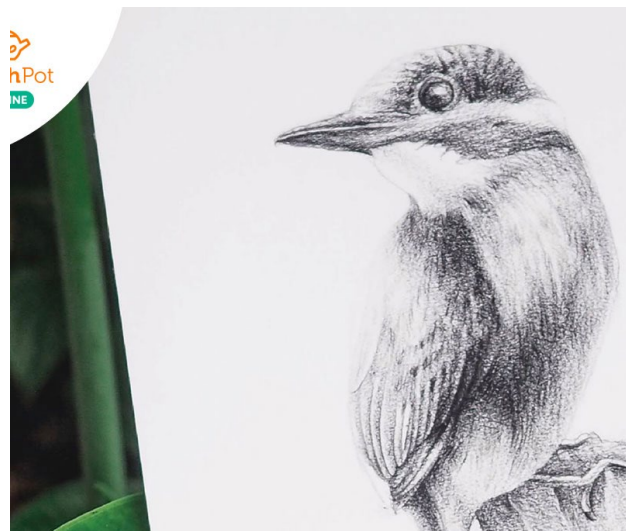
❖ “mark” means a photograph, drawing, device, brand, name, word, letter, manual, signature, combinations of colors, shape or configuration of an object or any one or combination thereof;

➤ The mark must be *used for the goods or in the connection with the goods*.

➤ (3) The mark must be *used to distinguish that goods from the other goods*.



Photograph



Drawing



Invented device





Logo



PORSCHE



Name, Word, Phrase



Letter, Numeral, Signature



Combination of colors





Figurative element





Sound

A Trademark that can be registered

➤ (1) It must be **distinctive**.

➤ enable the public or users to distinguish between those trademarked goods and other goods.





(2) It must not be prohibited by the Law

❖ E.g.

- Names of the royal family.
- Photographs of the royal family.
- Flags of the countries.
- The mark or symbol which is in the contrary of the public's order or morality.

- (3) It **must not be identical or confusingly similar** to another registered trademark.





Trademark Law in the Digital Age

- **Domain names as business identifiers → similar role to trademarks**

- **Challenges:**

- *Typosquatting*: misspelled domains (e.g., *facebok.com*) mislead users

- *Cybersquatting*: bad-faith domain registrations to resell or exploit brand

- **Case examples:**

- *Madonna v. Parisi* (2000) – reclaimed *madonna.com*

- *Panavision v. Toeppen* (1996) – cybersquatter blocked



Trademark Law in the Digital Age – Thai Context

- **Domain names not equal to trademarks** under Thai law (lack distinctiveness)
- **Risks:** Brand dilution & disputes if only domain registered
- **Best practices for Thai businesses:**
 - Register **both trademarks + domain names**
 - Secure protection **domestically & in target markets abroad**
- **Key Idea:** Balance brand protection with realities of online trade → need legal reform & proactive brand management